

HIPAA Business Associate Agreement (BAA)

For clients that are Covered Entities or upstream Business Associates

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Effective Date: _____

Parties and Effective Date

This Business Associate Agreement ("Agreement") is entered into as of the Effective Date by and between BVTech LLC, a Texas limited liability company ("Provider" or "BVTech"), with its principal office at 1902 Kirby Rd, El Campo, TX 77437, and the client identified on the signature page ("Client"). Provider and Client are each a "party" and together the "parties."

Client Legal Name: _____

Client Address: _____

Client Primary Contact / Email: _____

Background

Client is a Covered Entity or Business Associate under the Health Insurance Portability and Accountability Act of 1996 and its implementing regulations (45 C.F.R. Parts 160 and 164, "HIPAA"), and Provider may create, receive, maintain, or transmit Protected Health Information ("PHI") on Client's behalf in delivering IT services. Capitalized terms not defined here have the meanings in HIPAA.

Permitted Uses and Disclosures

Provider may use and disclose PHI only as necessary to perform services under the underlying services agreement, as required by law, or for Provider's proper management and administration (with required assurances from recipients). Provider shall not use or disclose PHI in any manner that would violate Subpart E of 45 C.F.R. Part 164 if done by Client.

Business Associate Obligations

- 1 Implement administrative, physical, and technical safeguards that reasonably and appropriately protect ePHI as required by the Security Rule (45 C.F.R. §§ 164.308, 164.310, 164.312, 164.316).
- 2 Report to Client any use or disclosure not permitted by this BAA, any Security Incident, and any Breach of Unsecured PHI without unreasonable delay and in no case later than ten (10) business days after discovery, including information required by 45 C.F.R. § 164.410.
- 3 Ensure subcontractors that handle PHI agree in writing to restrictions at least as stringent as this BAA.
- 4 Make PHI in a Designated Record Set available to Client to fulfill individuals' access and amendment rights (45 C.F.R. §§ 164.524, 164.526).
- 5 Maintain and make available information required for an accounting of disclosures (45 C.F.R. § 164.528).
- 6 Make internal practices, books, and records relating to PHI available to the Secretary of HHS for determining compliance.
- 7 Limit uses, disclosures, and requests to the minimum necessary.

Term and Termination; Return of PHI

This BAA is effective as of the Effective Date and terminates with the underlying services agreement. Client may terminate the underlying agreement if Provider materially breaches this BAA and fails to cure within thirty (30) days of written notice. Upon termination, Provider shall return or destroy all PHI if feasible; where return or destruction is infeasible (e.g., backup archives), Provider shall extend the protections of this BAA to such PHI and limit further use and disclosure to the purposes making return infeasible, for as long as the PHI is retained.

Miscellaneous

This BAA shall be interpreted to permit compliance with HIPAA and amended automatically to the extent required by changes in HIPAA. In conflict between this BAA and the underlying agreement regarding PHI, this BAA controls. Nothing in this BAA creates third-party beneficiary rights.

IN WITNESS WHEREOF, the parties have executed this document as of the Effective Date.

BVTech LLC

Client

Signature: _____

Signature: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____